

Court No. - 32

Case :- WRIT - C No. - 40665 of 2019

Petitioner :- Vishambar Dayal

Respondent :- Dakshinanchal Viddut Vitran
Nigam Limited And 2 Others

Counsel for Petitioner :- Gauri Shanker Mishra

Counsel for Respondent :- Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"i. Issue a writ, order or direction in the nature of writ of certiorari for quashing the impugned recovery certificate dated 09.10.2019 issued by the respondent No. 2 under Section 5 read with Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. (Contained in Annexure No. 7 of the Writ Petition)"

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority/Executive Engineer for redressal of his

grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 6 weeks, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 10.12.2019

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